

PETITION - SOUTH DAKOTA JUVENILE TRAFFICKING EXPUNGEMENT PETITION UNDER  
Sec. 26-7A-115.1

IN THE ..... COURT  
(the South Dakota court in which the delinquency proceeding was held)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:  
.....

SOUTH DAKOTA JUVENILE TRAFFICKING EXPUNGEMENT PETITION UNDER Sec.  
26-7A-115.1

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Juvenile trafficking and sexual-exploitation victim expungement", under S.D. Codified Laws Sec. 26-7A-115.1.

The compiled South Dakota profile records the substance of this route as follows. A child who was a victim of human trafficking or sexual exploitation may petition, directly or through a parent, guardian, or guardian ad litem, for expungement of a delinquency record that resulted from trafficking or sexual exploitation. Expungement under this statute vacates the underlying delinquency proceeding. ("https://law.justia.com/codes/south-dakota/title-26/chapter-07a/section-26-7a-115-1/")

The committed contract records the timing of this route as: an eligible victim who is over eighteen may petition upon establishing the statutory victimization nexus; no additional elapsed wait is stated.

The committed contract records these conditions on the route: Exact juvenile victim-relief statute or valid suspended-imposition order; Statutory nexus, offense, once-only, and completion limitations.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield  
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - age] Age?  
.....  
.....

[C2 - juvenile offense/adjudication] Juvenile offense/adjudication?

.....  
.....

[C3 - trafficking/exploitation nexus] Trafficking/exploitation nexus?

.....  
.....

[C4 - sis order] SIS order?

.....  
.....

[C5 - probation completion/discharge] Probation completion/discharge?

.....  
.....

[C6 - prior sis relief] Prior SIS relief?

.....  
.....

[C7 - excluded offense] Excluded offense?

.....  
.....

[C8 - sealing status] Sealing status?

.....  
.....

#### D. THE REQUEST

The petitioner asks the Court to expunge the delinquency record described above under SDCL Sec. 26-7A-115.1, which the compiled record states vacates the underlying delinquency proceeding.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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Route: obligation:runtime-only:SD:juvenile-trafficking-expungement

## FILING INSTRUCTIONS - SOUTH DAKOTA JUVENILE TRAFFICKING EXPUNGEMENT PETITION UNDER Sec. 26-7A-115.1

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

## FILING INSTRUCTIONS - SOUTH DAKOTA JUVENILE TRAFFICKING EXPUNGEMENT PETITION UNDER Sec. 26-7A-115.1

### WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Juvenile trafficking and sexual-exploitation victim expungement", under S.D. Codified Laws Sec. 26-7A-115.1, with outcome mode "participant\_packet".

The committed contract names the packet components for this route as: Petition under Sec. 26-7A-115.1; Victimization nexus evidence. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions - the compiled profile records that a child who was a victim may petition "directly or through a parent, guardian, or guardian ad litem" - and the court decides. The compiled profile's own instruction comes first: "If the juvenile record happened because the child was trafficked or sexually exploited, South Dakota has a special expungement route that may vacate the underlying delinquency proceeding. This should be routed to legal aid or an attorney."

### WHAT YOU DO

- Read the stop conditions before anything else.
- Check the committed contract's own conditions: it records that the petitioner must be over eighteen, and records a once-only limitation.
- If you go on, obtain the victimization nexus evidence the committed contract names as a component of this packet.

### WHAT YOU DO NOT DO

- Do not write an account of what was done to you on any page of this packet. Nothing here asks for one, and the compiled record's own instruction is that this route goes to legal aid or an attorney.
- Do not file anything before you have thought about what becomes public when you do. A court file is a public record unless something makes it otherwise, and nothing in this packet makes it otherwise.
- Do not confuse this with ordinary juvenile delinquency sealing under SDCL Sec. 26-7A-115 to 26-7A-116, which the compiled profile records as a different pathway with a statutory waiting period and a rehabilitation showing. This route has neither.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the office of the clerk of courts for the South Dakota county in which the delinquency

proceeding was held. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

#### WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states who must be served on this route, or how. The office that answers it is the office of the clerk of courts for the South Dakota county in which the delinquency proceeding was held.

#### WHEN TO STOP AND GET HELP INSTEAD

- **\*\*this is the first thing the committed record says about this route:\*\*** If the juvenile record happened because the child was trafficked or sexually exploited, South Dakota has a special expungement route that may vacate the underlying delinquency proceeding. This should be routed to legal aid or an attorney.
- the facts that establish the connection are yours to tell and yours alone. No page in this packet asks for an account of what was done to you, and nothing here should be written out for anyone who has not been engaged to act for you;
- your own safety is in question, now or once a filing becomes a public court record;
- there are other counts on the same case, or other cases - every committed contract in this group records other counts as a fact the route must collect;
- any immigration question is involved.

Route: obligation:runtime-only:SD:juvenile-trafficking-expungement